

IOWA BOARD OF BEHAVIORAL SCIENCE

IN THE MATTER OF:	)	CASE NO. 14-0361
	)	DIA NO. 18BS0001
MICHELLE JOHNSON,	)	
License No. 001060	)	FINDINGS OF FACT,
	)	CONCLUSIONS OF LAW,
RESPONDENT	)	DECISION AND ORDER

On February 8, 2018, the Board conducted a hearing on the reinstatement request filed by Michelle Johnson (Respondent) at the Lucas State Office Building, Des Moines, Iowa. The hearing was closed to the public at Respondent's request, pursuant to Iowa Code section 272C.6(1), and was recorded by a certified court reporter. The Respondent appeared and was represented by attorney Tyler Smith. The state of Iowa was represented by Laura Steffensmeier, Assistant Attorney General. The following Board members were present for the hearing, Chairperson Erik Oostenink, MHC; Sarah Thomas, MFT; Donald Gilbert, MHC; Jeff Kerber, MFT; and Jill Struyk, Public Member. Administrative Law Judge Emily Kimes-Schwiesow assisted the Board in conducting the hearing and was instructed to prepare the Board's Decision in conformance with their deliberations.

THE RECORD

The record includes the Notice of Reinstatement Hearing, the testimony of Respondent, and State Exhibits 1 through 4.

FINDINGS OF FACT

1. On August 13, 2015, the Board found probable cause to file a Notice of Hearing and Statement of Charges against the Respondent. She was charged with being convicted of a crime related to the profession, failure to notify the Board of a criminal conviction within 30 days of the action, and engaging in unethical conduct, including but not limited to betrayal of a professional confidence and engaging in a professional conflict of interest. The charges were related to Respondent's May 5, 2015 guilty plea to theft in the third degree. The crime involved Respondent taking money from a client and not returning it when requested. (State Exhibit 2)

2. On February 4, 2016, the Board approved a Settlement Agreement and Final Order in which Respondent voluntarily surrendered her license to practice as a mental health counselor to resolve the pending disciplinary charges. (State Exhibit 2)
3. On December 29, 2016, Respondent filed an application for reinstatement with the Board. On March 21, 2017, the Board issued a Findings of Fact, Conclusions of Law, Decision and Order denying the application and instructing Respondent to submit to a comprehensive evaluation prior to submitting another application for reinstatement. (State Exhibit 2)
4. On January 25, 2018, Respondent submitted an application for license reinstatement. Notice of Reinstatement Hearing was issued on January 26, 2018, and hearing was held on February 8, 2018. (State Exhibit 1, 3)
5. In support of her application for reinstatement, Respondent has submitted a report from her behavioral health providers. The report indicates Respondent has identified, addressed, and eliminated the conditions which led to her past violations. She has been in therapy for over two years, sees her psychiatrist regularly for medication management, has completed training regarding ethics and boundaries as well as personal and professional self-care, completed a financial management course, and meets regularly with her priest for spiritual advisement and support. The providers concluded Respondent is safe to return to practice as a therapist with conditions in place. The report recommends Respondent be supervised by a clinical professional for 6 months to 1 year with regular reports to the Board. They further recommend she limit her caseload with regard to working with personality disorders. (Exhibit 3)
6. Respondent has continued to participate in therapy. Respondent's therapist supports Respondent's application for reinstatement indicating she is safe to practice with adequate supervision and consultation. Her therapist further recommends Respondent continue with therapy for at least 6 months after returning to practice. (Exhibit 3)
7. Respondent testified at hearing and discussed the actions she has taken over the past two years in hope of regaining her license. She is agreeable with the recommendations of her providers and expressed a willingness to limit working with personality disorders as well as her total work hours. She intends

to continue in therapy and medication management with her providers.

Respondent has been employed in marketing for 3 years and currently works 40 hours per week. She anticipates easing back into practice and will continue to limit her work to 40 hours per week. Respondent described herself as living a full life now and is confident that she will reach out for help if she needs it in the future. She misses working as a therapist and helping others. (Respondent testimony)

CONCLUSIONS OF LAW

645 IAC 11.31 provides, in relevant part:

645-11.31(272C) Reinstatement.

11.31(1) Any person whose license to practice has been...suspended may apply to the board for reinstatement in accordance with the terms and conditions of the order of ... suspension,...

11.31(2) If the order of ... suspension did not establish terms and conditions upon which reinstatement might occur, or if the license was voluntarily surrendered, an initial application may not be made until one year has elapsed from the date of the order or the date of the voluntary surrender.

...

11.31(4) An application for reinstatement shall allege facts which, if established, will be sufficient to enable the board to determine that the basis for the ...suspension of the respondent's license no longer exists and that it will be in the public interest for the license to be reinstated. The burden of proof to establish such facts shall be on the respondent.

11.31(5) An order denying or granting reinstatement shall be based upon a decision which incorporates findings of fact and conclusions of law. The order shall be published as provided for in this chapter.

The issues before the Board are whether the basis for the surrender of Respondent's license no longer exists and whether reinstatement is in the public interest. In order to reinstate, the Board must be satisfied that the public will be protected and that Respondent is willing and able to comply with all of the

statutes and rules governing her practice as a mental health counselor, including all ethical obligations. The Board has determined that Respondent's license may be reinstated with specified conditions including a lengthy period of monitoring and reporting.

Respondent has been without a license for nearly two years. She has completed criminal probation, has participated in treatment for her mental health issues, taken continuing education courses regarding ethics and boundaries, and taken additional courses related to self-care and financial management. It is evident that she has worked hard to ameliorate her situation. A comprehensive mental health evaluation was completed involving multiple providers. The recommendation indicates Respondent is safe to return to practice with adequate safeguards in place. It will be necessary for Respondent to limit her work with personality disorders and have clinical supervision in place. She must also continue with her own personal therapy as recommended.

ORDER

IT IS THEREFORE ORDERED that Respondent's Iowa license to practice as a mental health counselor, number 001060, is hereby REINSTATED and is immediately placed on PROBATION for five years, subject to the following terms and conditions:

A. Respondent shall obtain a board approved licensed mental health professional to serve as her clinical supervisor. The clinical supervisor must have documented training in supervision and personality disorders. Respondent must meet with her clinical supervisor in person at least once per week. The clinical supervisor must review all cases Respondent takes on involving cluster B personality disorders, acute stress disorders, PTSD, and severe trauma. Respondent shall ensure that her clinical supervisor provides a written quarterly report to the Board detailing his or her meetings and discussions with Respondent.

B. Respondent shall obtain a board approved licensed mental health professional to serve as her on-site supervisor and practice monitor. This person must be present daily at Respondent's workplace and have regular interaction with her. Respondent shall ensure that her on-site supervisor and practice monitor provides a written quarterly report to the Board describing Respondent's activities and level of competence as well as her

ability to professionally interact with clients and coworkers.

C. Respondent shall limit her counseling hours to no more than twenty per week. Respondent will create an addendum to her consent for treatment documentation explaining that she may refer the client to another provider if diagnoses including cluster B personality disorders, PTSD, severe trauma, and acute stress disorder are present. Respondent will submit a copy of the addendum to the Board prior to her return to practice.

D. Respondent shall provide quarterly written reports to the Board which shall address Respondent's encounters with patients, meetings with her Board approved clinical supervisor and on-site practice monitor, her compliance with the terms of this Decision and Order, her efforts to maintain a work/life balance, and any other issues identified by the Board.

E. After Respondent has completed one year of active practice, she may submit a request to the Board to amend the probationary terms regarding supervision and work restrictions. Such a request must be submitted in writing, and will require Respondent to appear in person before the Board in support of the request.

F. Respondent shall fully comply with all treatment recommendations made by her mental health care provider(s), including but not limited to any recommendations made with respect to medications, counseling, and/or therapy. Respondent shall ensure that her mental health care provider(s) provide a written quarterly report to the Board verifying her compliance with all treatment recommendations.

G. Respondent shall sign all necessary release forms that may be required to obtain information related to monitoring and/or compliance with the provisions of this Decision and Order.

H. Respondent is responsible for all expenses incurred in order to comply with the conditions and requirements imposed by this Decision and Order.

I. Any violation of the terms and conditions of probation shall be grounds for further discipline, up to and including permanent license revocation.

Dated this 22nd day of March, 2018.

Erik Oostenink, MHC

Erik Oostenink, MHC
Chairperson
Iowa Board of Behavioral Science

cc: Laura Steffensmeier, Assistant Attorney General

Any aggrieved or adversely affected party may seek judicial review of this decision and order of the board, pursuant to Iowa Code section 17A.19.